

1 ENGROSSED HOUSE
2 BILL NO. 3040

By: West (Josh) of the House
and
Hamilton of the Senate

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6 An Act relating to crimes and punishments; amending
7 21 O.S. 2021, Section 1125, as amended by Section
8 400, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
9 Section 1125), which relates to zones of safety;
10 expanding zone of safety to include certain places;
11 prohibiting sex offenders from loitering near places
12 that cater to minors; and providing an effective
13 date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 21 O.S. 2021, Section 1125, as
16 amended by Section 400, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
17 2025, Section 1125), is amended to read as follows:

18 Section 1125. A. A zone of safety is hereby created around
19 elementary, junior high and high schools, permitted or licensed
20 child care centers as defined by the Department of Human Services,
21 playgrounds, parks ~~or~~, the residence of a victim of a sex crime, or
22 any facility, business, or location that primarily caters to or
23 provides services for minors including, but not limited to, skating
24 rinks, youth recreation centers, public swimming pools, arcades,
amusement parks, and water parks.

1 1. A person is prohibited from loitering within five hundred
2 (500) feet of any elementary, junior high or high school, permitted
3 or licensed child care center, playground, ~~or~~ park, or any facility,
4 business, or location that primarily caters to or provides services
5 for minors including, but not limited to, skating rinks, youth
6 recreation centers, public swimming pools, arcades, amusement parks,
7 and water parks, if the person has been convicted of a crime that
8 requires the person to register pursuant to the Sex Offenders
9 Registration Act or the person has been convicted of an offense in
10 another jurisdiction, which offense if committed or attempted in
11 this state, would have been punishable as one or more of the
12 offenses listed in Section 582 of Title 57 of the Oklahoma Statutes
13 and the victim was a child under the age of sixteen (16) years.

14 2. A person is prohibited from entering any ~~park~~ zone of safety
15 if:

- 16 a. the person has been designated as a habitual or
17 aggravated sex offender as provided in Section 584 of
18 Title 57 of the Oklahoma Statutes, or
19 b. the person has been convicted of an offense in another
20 jurisdiction, which offense, if committed or attempted
21 in this state, would designate the person as a
22 habitual or aggravated sex offender as provided in
23 Section 584 of Title 57 of the Oklahoma Statutes.

1 3. A person is prohibited from loitering within one thousand
2 (1,000) feet of the residence of his or her victim if:

3 a. the person who committed a sex crime against the
4 victim has been convicted of said crime, and

5 b. the person is required to register pursuant to the Sex
6 Offenders Registration Act.

7 B. A person convicted of a violation of subsection A of this
8 section shall be guilty of a Class D1 felony offense punishable by a
9 fine not exceeding Two Thousand Five Hundred Dollars (\$2,500.00), or
10 by imprisonment as provided for in subsections B through F of
11 Section 20N of this title, or by both such fine and imprisonment.
12 Any person convicted of a second or subsequent violation of
13 subsection A of this section shall be guilty of a Class D1 felony
14 offense and shall be punished by a fine not exceeding Two Thousand
15 Five Hundred Dollars (\$2,500.00), or by imprisonment as provided for
16 in subsections B through F of Section 20N of this title, or by both
17 such fine and imprisonment. This proscription of conduct shall not
18 modify or remove any restrictions currently applicable to the person
19 by court order, conditions of probation or as provided by other
20 provision of law.

21 C. 1. A person shall be exempt from the prohibition of this
22 section regarding a school or a licensed or permitted child care
23 facility only under the following circumstances and limited to a
24 reasonable amount of time to complete such tasks:

- a. the person is the custodial parent or legal guardian of a child who is an enrolled student at the school or child care facility, and
- b. the person is enrolling, delivering or retrieving such child at the school or licensed or permitted child care center during regular school or facility hours or for school-sanctioned or licensed-or-permitted-child-care-center-sanctioned extracurricular activities.

Prior to entering the zone of safety for the purposes listed in this paragraph, the person shall inform school or child care center administrators of his or her status as a registered sex offender. The person shall update monthly, or as often as required by the school or center, information about the specific times the person will be within the zone of safety as established by this section.

2. This exception shall not be construed to modify or remove any restrictions applicable to the person by court order, conditions of probation, or as provided by other provision of law.

D. The provisions of subsection A of this section shall not apply to any person receiving medical treatment at a hospital or other facility certified or licensed by the State of Oklahoma to provide medical services. As used in this subsection, "medical treatment" shall not include any form of psychological, social or rehabilitative counseling services or treatment programs for sex offenders.

1 E. Nothing in this section shall prohibit a person, who is
2 registered as a sex offender pursuant to the Sex Offenders
3 Registration Act, from attending a recognized church or religious
4 denomination for worship; provided, the person has notified the
5 religious leader of his or her status as a registered sex offender
6 and the person has been granted written permission by the religious
7 leader.

8 F. For purpose of prosecution of any violation of this section,
9 the provisions of Section 51.1 of this title shall not apply.

10 G. As used in this section, "park" means any outdoor public
11 area specifically designated as being used for recreational purposes
12 that is operated or supported in whole or in part by a homeowners'
13 association or a city, town, county, state, federal or tribal
14 governmental authority.

15 SECTION 2. This act shall become effective November 1, 2026.

16 Passed the House of Representatives the 11th day of March, 2026.

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19 Presiding Officer of the House
20 of Representatives

21 Passed the Senate the _____ day of _____, 2026.

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24 Presiding Officer of the Senate